

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.29. Establishment or School Relocation, Change of Ownership, Owner Death or Incompetency.

- (a) Under the Act, a license is not transferable.
- (b) If an establishment relocates, the licensee must apply for a new establishment license and verify that the new establishment meets the requirements of the Act and this chapter. The requirements of this subsection do not apply to mobile establishments.
- (c) If a school relocates, the licensee must submit a change of location application in the manner prescribed by the department and pay the applicable fee required under §83.80 of this chapter. Additionally, a relocated school must be inspected and meet the applicable requirements of the Act and this chapter prior to operation.
- (d) If an establishment or school changes ownership, the new owner must apply for a new license within 30 days after the change of ownership. Additionally, a school must be inspected but may continue to operate pending the department's inspection. A change of ownership includes the following:
 - (1) For a sole proprietorship, the licensee no longer owns the establishment or school.
 - (2) For a partnership or limited partnership, the partnership is dissolved.
 - (3) For a corporation or limited liability company, if sold to another person or entity. A change of ownership does not include corporate officer or stockholder restructuring.
 - (4) Legal incompetence or death of the owner.